

P O R T E R | S C O T T

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Attorneys for Defendants,

CSAA INSURANCE EXCHANGE, CARBONE,

SMITH & KOYAMA, AND MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**NOTICE OF MOTION AND SPECIAL
MOTION TO STRIKE PLAINTIFF'S
FIRST AMENDED COMPLAINT
PURSUANT TO C.C.P. § 425.16
(ANTI-SLAPP MOTION)**

DATE: MAY 12, 2026

TIME: 9:00 A.M.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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PLEASE TAKE NOTICE that on the above date and time in Department 301 of the above-entitled court, located at 400 McAllister St., San Francisco, CA, 94102, Defendants CSAA INSURANCE EXCHANGE, CARBONE, SMITH & KOYAMA, AND MICHAEL R. CHAMBERS (collectively “Defendants”) will and hereby do move the court for an order striking Plaintiff’s First Amended Complaint for Independent Action in Equity to Set Aside Judgment for Extrinsic Fraud, filed against them on February 25, 2026, pursuant to Code Civ. Proc. § 425.16, and for an order awarding defendants their attorneys’ fees pursuant to Code Civ. Proc. § 425.16(c).

This Special Motion to Strike is based upon the grounds that: Plaintiff's allegations, and the entire cause of action Plaintiff asserts against Defendants, arises from protected activity under the litigation privilege set forth in Civil Code § 47(b). Defendants also seek the imposition of attorneys' fees and costs as against Plaintiff for necessitating this motion.

This motion is further based upon this notice, upon the Memorandum of Points and Authorities, and the facts stated in the Declarations of Tyler J. O’Connell, filed herewith; upon the records and files in this action, upon Defendants’ Request for Judicial Notice and the matters appended thereto, and upon such further evidence and argument as may be presented prior to or at the time of hearing on the motion/application.

TENTATIVE RULINGS

A. The San Francisco Superior Court adopts CRC 3.1308 as the tentative ruling procedure in civil law and motion and discovery matters. For Real Property Court, compliance with 8.10(B) is required.

B. Parties may obtain a tentative ruling issued by the Law and Motion and Discovery Departments by telephoning (415) 551-4000 or visiting the court's website at <https://sf.courts.ca.gov/> and clicking the online services link. Changes in telephone numbers will appear in the official newspapers.

C. A party who fails to appear at the hearing is deemed to submit to the tentative ruling. However, no party may submit to a tentative ruling that specifies that a hearing is required.

D. Parties who intend to appear at the hearing must give notice to opposing parties and the court promptly, but no later than 4:00 p.m. the day before the hearing unless the tentative ruling

1 has specified that a hearing is required. Notice of contesting a tentative ruling must be provided by
2 sending an email to the court to contestdept302tr@sftc.org with a copy to all other parties stating,
3 without argument, the portion(s) of the tentative ruling that the party contests. A party may not argue
4 at the hearing if the opposing party is not so notified and the opposing party does not appear.

5 E. If no party appears, or if a party does not appear because the opposing party failed to
6 give sufficient notice of intent to argue, then the tentative ruling will be adopted.

7 F. Tentative rulings are generally available by 3:00 p.m. the day before the hearing. A
8 tentative ruling that does not become available until after 3:00 p.m. is a late tentative ruling. A late
9 tentative ruling will indicate that the ruling is late. If a tentative ruling is late, the parties must appear
10 unless all parties agree to submit to a late tentative ruling in which case the Court will adopt the late
11 tentative ruling pursuant to subsection E above.

12 G. The prevailing party on a tentative ruling is required to prepare a proposed order
13 repeating verbatim the substantive portion of the tentative ruling and must bring the proposed order
14 to the hearing even if the motion is not opposed or the tentative ruling is not contested. If the
15 prevailing party is appearing at the hearing remotely, the proposed order may be sent to the court
16 by an email to contestdept302tr@sftc.org. If the proposed order is for a summary judgment and/or
17 adjudication motion, the proposed order must comply with requirements of CCP § 437c(g). If the
18 proposed order is for a motion, such as a motion to withdraw as counsel, where there is a Judicial
19 Council form order, the prevailing party should complete the Judicial Council form as the proposed
20 order.

21
22 Dated: April 9, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

23
24
25 By _____
26 Chad S. Tapp
27 Tyler J. O'Connell
28 Attorneys for Defendants
CSAA INSURANCE EXCHANGE,
CARBONE, SMITH & KOYAMA, AND
MICHAEL R. CHAMBERS

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 9, 2026, I served the following document:

7 **NOTICE OF MOTION AND SPECIAL MOTION TO STRIKE PLAINTIFF'S FIRST**
8 **AMENDED COMPLAINT PURSUANT TO C.C.P. § 425.16 (ANTI-SLAPP MOTION)**

9 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
10	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
11	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
12	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

13 Addressed as follows:

14 **PLAINTIFF, IN PRO PER**

15 Franciscus Dylan Rosario
16 7624 Melody Drive
17 Rohnert Park, CA 94928
18 soltrinox@gmail.com

19 I declare under penalty of perjury under the laws of the State of California that the foregoing
20 is true and correct. Executed on Sacramento, California on April 9, 2026.

21 **Monique Schubert**
22 Monique Schubert